

and exchange, of appointment of new trustees, and *other usual powers*, it was held that a power of granting building leases could not be inserted (*a*). So, if the trustees be authorized to insert a power of sale and exchange of estates in the county of Hereford, and *all other usual powers*, they would not be justified in extending the power of sale and exchange to estates lying in a different county (*b*). And where a testator directed that the settlement should contain all proper powers for making leases, and *otherwise according to circumstances*, and that provision should also be made for the appointment of new trustees, and the Court was asked to insert a power of sale and exchange, Lord Eldon said, "It was held by Sir W. Grant, that unless the insertion of a power were authorized by the direction to make a settlement, it could not be introduced; and if, where nothing is expressed, nothing can be implied, it is impossible, where something is expressed, I can imply more than is expressed; and particularly where the will notices what powers are to be given" (*c*). But, where a testator directed the insertion of powers of leasing, and sale or exchange or partition, and then added, "And my will is, that in such intended settlement shall be inserted all such other proper and reasonable powers as are *usually* inserted in settlements of the like nature," and the question was raised, whether, under these words, a power of appointment of new trustees might be introduced, Lord Cottenham, then M. R., said, "he had referred to the will, and as he found that those general words were in a separate and distinct sentence, he was of opinion that they would authorize the insertion of the power" (*d*).

"**Proper powers.**" — A testator had directed the insertion of *proper* powers for making leases or otherwise to be reserved to the *tenants for life*, while qualified to exercise them, and, whenever disqualified, to the *trustees*. In the execution of the settlement, a power of sale and exchange was introduced, and was *limited to the trustees with the consent of the tenant*

(*a*) *Pearse v. Baron*, Jac. 158. 625; and see *Horne v. Barton*, Jac.

(*b*) *Hill v. Hill*, 6 Sim. 141, *per* 439.

Sir L. Shadwell.

(*d*) *Lindow v. Fleetwood*, 6 Sim.

(*c*) *Brewster v. Angell*, 1 J. & W. 152.